

The Court previously continued these motions to September 16, 2026 to permit supplemental briefing to address new evidence submitted with Golden Gate Bell's reply. Although Defendant's supplemental brief references an opposition from Plaintiff, none appears to have been filed. Plaintiff's counsel shall file a copy of the supplemental brief no later than September 17, 2026.

The parties must be prepared to proceed with an evidentiary hearing on September 30, 2026 at 10:30 a.m., at which counsel may examine the witnesses whose declarations were submitted in support of or in opposition to the motions. Counsel and their witnesses may appear by Zoom. The Court will allot 20 minutes total for the hearing. The Court reserves the right to determine, upon reviewing the brief, whether an evidentiary hearing is necessary. The parties are directed to check the published tentative ruling for the September 30, 2026 9:00 a.m. law and motion calendar for further instructions regarding the evidentiary hearing.

15. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

See Line 14, above.

16. 9:00 AM CASE NUMBER: C25-00268
CASE NAME: DAVID SISNEROS VS. UNITED PARCEL SERVICE, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: UNITED PARCEL SERVICE, INC.
TENTATIVE RULING:

This hearing is continued, sua sponte, to October 21, 2026 at 9:00 a.m. No appearance is required on September 16, 2026.

17. 9:00 AM CASE NUMBER: C25-00305
CASE NAME: CORAL MICHEL VS. CITY OF MARTINEZ
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF MARTINEZ
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant City of Martinez ("Defendant")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Coral Michel ("Plaintiff" of "Michel")'s Complaint for premises liability.

Defendant moves for summary judgment on the grounds that Plaintiff cannot prove that the City of Martinez created or had actual or constructive notice of the alleged condition.

For the following reasons, Defendant's motion for summary judgment is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part: